Syllabus

CISCO SYSTEMS, INC., ET AL. *v.* DOE ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 24–856. Argued April 28, 2026—Decided June 23, 2026

Plaintiffs contend that the Chinese Government persecuted them because of their religious beliefs, and that Cisco Systems, Inc. enabled that persecution by developing surveillance technology that allowed China to identify and apprehend them. Plaintiffs allege that Cisco and its executives are liable for aiding and abetting violations of international law, citing the Alien Tort Statute (ATS). One plaintiff also seeks to hold two Cisco executives liable for aiding and abetting violations of the Torture Victim Protection Act of 1991 (TVPA).

The ATS grants federal district courts jurisdiction over "any civil action by an alien for a tort only, committed in violation of the law of nations or a treaty of the United States." 28 U. S. C. § 1350. The ATS lay mostly dormant for two centuries after its enactment. In the last few decades, however, litigants have urged courts to allow private rights of action under the ATS for various alleged human rights abuses. In *Sosa* v. *Alvarez-Machain*, 542 U. S. 692, this Court held that "the ATS is a jurisdictional statute creating no new causes of action." *Id.*, at 724. At the same time—and in considerable tension with that point—the Court said that the ATS allows for the possibility of new, judicially created causes of action to enforce norms of international law. *Id.*, at 724–725. Though *Sosa* did not "close the door" on judicially created rights of action under the ATS, *Sosa* emphasized the narrowness of its view and underscored the need for "vigilant doorkeeping." *Id.*, at 729. *Sosa* proposed a two-step framework for creating those causes of action: First, a plaintiff must show that the norm has a "definite content and acceptance among civilized nations," *id.*, at 732; second, a plaintiff must show that it would be prudent for the court to create the proposed cause of action when the political branches have not acted, *id.*, at 726, 736, n. 27. Since *Sosa*, the Court has never created an ATS right of action.

In this case, the District Court dismissed plaintiffs' complaint, but the Ninth Circuit reversed in relevant part. The Ninth Circuit focused on whether aiding-and-abetting liability may be imposed under the ATS. 73 F. 4th 700, 716. At *Sosa*'s first step, the Ninth Circuit found that "aiding and abetting liability is sufficiently definite and universal to be a viable form of liability under the ATS." 73 F. 4th, at 718. At the

Page Proof Pending Publication

second step, it concluded that neither "foreign relations concerns" nor "deference to Congress" supplied a "prudential reason to decline to recognize aiding or abetting liability." *Id.*, at 720. The Ninth Circuit also held that the TVPA "encompasses claims against those who aid and abet torture." *Id.*, at 744. The Court granted certiorari to determine whether Cisco may be held liable for aiding and abetting offenses under the ATS, and whether two of its executives may be held liable under the TVPA for aiding and abetting torture.

Held:

1. Courts may not create new causes of action for violations of international norms under the ATS. Pp. 151–156.

Two points drive the Court's decision. First, judicial authority under *Sosa*'s second step was "narrow at the outset." *Nestlé USA, Inc.* v. *Doe*, 593 U. S. 628, 636 (opinion of THOMAS, J.). *Sosa* instructed federal courts to exercise "great caution in adapting the law of nations to private rights," 542 U. S., at 728, and to assess the "practical consequences" of creating new liability under the ATS, including the "risks of adverse foreign policy consequences." *Id.*, at 728, 732–733. Because ATS cases by their nature implicate foreign policy, it is difficult to think of a case in which a court "might safely conclude" that a new ATS cause of action would not have detrimental foreign policy consequences. *Jesner* v. *Arab Bank, PLC*, 584 U. S. 241, 284 (2018) (GORSUCH, J., concurring in part and concurring in judgment). Second, the power to create causes of action belongs to Congress. See, *e. g.*, *Sosa*, 542 U. S., at 727; *Nestlé*, 593 U. S., at 634–635 (opinion of THOMAS, J.). The Court has "rejected the practice of fashioning rights of action as [it] see[s] fit," *FS Credit Opportunities Corp.* v. *Saba Capital Master Fund, Ltd.*, 608 U. S. 608, 613. Congress is better positioned than courts to evaluate the policy tradeoffs of creating liability. This is especially true in an area like this one, where the Constitution expressly delegates authority to Congress to "define and punish . . . Offences against the Law of Nations." Art. I, §8, cl. 10. For that reason, creating any cause of action "is an extraordinary act that places great stress on the separation of powers." *Nestlé*, 593 U. S., at 636 (opinion of THOMAS, J.).

Page Proof Pending Publication

Because of these concerns, *Sosa* consciously designed a test that would be extremely difficult to meet. But what *Sosa* made difficult, subsequent legal developments have made impossible. Since *Sosa* was decided, the Court has firmly committed to the view that judicially created causes of action offend the separation of powers in almost every circumstance. Recent cases emphasize that "'[i]f there are sound reasons to think Congress might doubt the efficacy or necessity of a damages remedy, the courts must refrain from creating it.'" *Egbert* v.

Boule, 596 U. S. 482, 491 (quoting *Ziglar* v. *Abbasi*, 582 U. S. 120, 137; alterations omitted). In the ATS context, there will always be at least a "single sound reason" to conclude that Congress might not want the judiciary to take the lead. *Sosa* itself identified one applicable in every case: "the possible collateral consequences of making international rules privately actionable." 542 U. S., at 727. And Congress has created an "alternative remedial structure"—the TVPA—which precludes the creation of a cause of action. *Ziglar*, 582 U. S., at 137.

The Court therefore will not continue to "indulge the fiction" that creating new ATS causes of action is sometimes appropriate. *Edwards* v. *Vannoy*, 593 U. S. 255, 274. Correcting *Sosa*'s unfulfilled prediction will not upset reliance interests and will promote stability. *Sosa* was overly optimistic in its prediction that there might be a narrow class of cases in which courts may create ATS actions without infringing on the prerogatives of the political branches. In truth, this class is a null set. And because courts cannot create new rights of action to remedy violations of international law, there is necessarily no liability for aiding and abetting such violations.

2. The TVPA, which contains an express cause of action against someone who "subjects" another to torture, does not provide for aiding-and-abetting liability. Pp. 156–157.

Pages Proof Pending Publication

In *Central Bank of Denver, N. A.* v. *First Interstate Bank of Denver, N. A.*, 511 U. S. 164, the Court held that §10(b) of the Securities Exchange Act of 1934 does not create civil aiding-and-abetting liability because the statute does not mention "aiding and abetting," differentiating §10(b) from other civil statutes in which Congress expressly provided for that specialized form of liability. *Id.*, at 175–177, 182–183. The TVPA similarly nowhere mentions aiding-and-abetting liability, and that silence is enough to settle the issue.

Plaintiffs argue that "subjects" in the TVPA is broad enough to include aiding-and-abetting liability, but it is not. To "subject" another to torture means "to cause to undergo or submit to," Webster's Third New International Dictionary 2275, signaling a causal connection between torturer and victim. Aiding-and-abetting liability, by contrast, encompasses many forms of assistance provided by those who are one (or more) steps removed from the torturer. See *Twitter, Inc.* v. *Taamneh*, 598 U. S. 471, 497. *Central Bank* rejected a similar argument that the phrase "'directly or indirectly'" authorized aiding-and-abetting liability, explaining that "aiding and abetting liability extends beyond persons who engage, even indirectly, in a proscribed activity." 511 U. S., at 175–176. The same analysis applies here: Aiding-and-abetting liability sweeps more broadly than the language Congress chose.

Syllabus

73 F. 4th 700, reversed and remanded.

BARRETT, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. JACKSON, J., filed an opinion concurring in judgment in part and dissenting in part, in which KAGAN, J., joined, *post*, p. 158. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN and JACKSON, JJ., joined as to Parts I–III and V, *post*, p. 159.

Kannon K. Shanmugam argued the cause for petitioners. With him on the briefs were *Masha G. Hansford*, *Jake L. Kramer*, *Anna M. Stapleton*, *Christopher G. Michel*, and *Todd Anten*.

Deputy Solicitor General Gannon argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Sauer*, *Deputy Assistant Attorney General Hamilton*, *Anthony A. Yang*, *Melissa N. Patterson*, *Sonia Carson*, and *Reed D. Rubinstein*.

Page Proof Pending Publication

Paul L. Hoffman argued the cause for respondents. With him on the brief were *Catherine Sweetser*, *Terri E. Marsh*, and *Matthew Griechen*.*

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*Briefs of *amici curiae* urging reversal were filed for CACI Premier Technology, Inc., by *John F. O'Connor*; and for the Washington Legal Foundation by *Cory L. Andrews*. *Ilana H. Eisenstein*, *James E. Berger*, *Charlene C. Sun*, *Jonathan D. Urick*, *Erica Klenicki*, and *Caroline McAuliffe* filed a brief for the Chamber of Commerce of the United States of America et al. as *amici curiae* urging vacatur.

Briefs of *amici curiae* urging affirmance were filed for the Center for Justice and Accountability by *Susan H. Farbstein*; for the Constitutional Accountability Center by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for the Electronic Frontier Foundation by *Sophia Cope* and *Cindy Cohn*; for the Estate of Tamar Kedem Siman Tov et al. by *John W. Brewer*, *Bijan Amini*, and *Gavriel Mairone*; for Former U. S. Ambassadors-at-Large for War Crimes Issues/Global Criminal Justice et al. by *Christina G. Hioureas* and *Nicholas Renzler*; for the Guernica37 Centre for International Justice by *Christina G. Hioureas*; for Human Rights First et al. by *Scott A. Gilmore*; for International Human Rights Organizations by *Katherine Gallagher*; for International Law Scholars by *Robert K. Kry*; for Oxfam America et al. by *Michael D. Hausfeld*; for Persecuted Christian Minori-

JUSTICE BARRETT delivered the opinion of the Court.

The Alien Tort Statute grants federal courts jurisdiction to hear cases involving violations of the law of nations. While conceding that the ATS is "strictly jurisdictional," we have also said that courts have narrow authority to create causes of action under it. *Sosa* v. *Alvarez-Machain*, 542 U. S. 692, 713, 724–725 (2004). These positions are in obvious tension with one another. More significantly, however, asserting such authority would intrude on both Congress's prerogative to provide rights of action and the power of the political branches to direct the Nation's foreign policy. It is therefore unsurprising that this Court has never created an ATS action. The authority to do so, always described as slight, is more accurately described as nonexistent.

Today, we close the door that *Sosa* cracked and hold that courts may not create new causes of action for violations of international norms. We also hold that the Torture Victim Protection Act of 1991, which contains an express cause of action, does not provide for aiding-and-abetting liability.

Page Proof Pending Publication

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In the early days of our Nation, two incidents involving foreign diplomats "caused substantial foreign-relations problems." *Jesner* v. *Arab Bank, PLC*, 584 U. S. 241, 253 (2018).

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ties et al. by *Thomas Becker* and *Richard Ghazal*; for Scholars of Federal Jurisdiction et al. by *James K. Green*; for the Uyghur Human Rights Project et al. by *Paul A. Cunningham*; for William R. Casto et al. by *Emily A. Ray* and *Tyler R. Giannini*; and for Bob Fu et al. by *James I. Pearce*, *Samantha P. Bateman*, and *Sydney Foster*.

Briefs of *amici curiae* were filed for the Center for A Free Cuba et al. by *Kendall Coffey*, *Amanda M. Comas*, *Tori Simkovic*, *Lee E. Goodman*, and *Manuel E. Iglesias*; for Former U. N. Special Rapporteurs on Torture by *Brian Olney* and *William J. Aceves*; and for Rep. Christopher H. Smith et al. by *Agnieszka M. Fryszman* and *Jennifer M. Green*.